AREA Alberta Real Estate Association

_____
Agreement Number

LANDLORD CUSTOMER STATUS ACKNOWLEDGMENT AND FEE AGREEMENT

(For use in Common Law and Designated Agency Brokerages)

Between

THE LANDLORD	and	**THE TENANT'S BROKERAGE**
Name_____		Brokerage Name_____
Name_____		_____
Address_____		Address_____
_____ (postal code)		_____ (postal code)
Phone_____ Fax_____		Phone_____ Fax_____
Email_____		Email_____
		Brokerage Representative_____
		Member of_____ (the "Board")

In consideration of the Brokerage finding a tenant (the "Tenant") for the Landlord's property (the "Premises") located at:

_____
(municipal address) (legal description)

the Landlord hereby acknowledges and agrees to the following terms:

1. BROKERAGE IS AGENT OF TENANT

1.1 The Brokerage is the agent of the Tenant who is interested in the Premises and, as agent, the Brokerage is obligated:

(a) to be loyal to the Tenant and always act in the best interests of the Tenant;

(b) not to provide the Landlord with advice nor to provide the Landlord with information that is not in the interests of the Tenant; and

(c) to communicate to the Tenant all information, whether or not of a confidential nature, that it receives from the Landlord, except for confidential information acquired in a prior agency relationship with the Landlord.

2. NO AGENCY REPRESENTATION

2.1 The Landlord has read this Agreement and has been given the opportunity to request further information and independent advice concerning this Agreement and the representation/non-representation relationships it describes, and the Landlord:

(a) has chosen to forgo any agency representation, together with its advantages, protection and services;

(b) understands that the Brokerage does not owe the Landlord any agency obligations; and

(c) understands that the Brokerage will not provide the Landlord with any services that require the Brokerage to exercise discretion or judgment, give advice or advocate on the Landlord's behalf, except as hereinafter agreed.

3. GENERAL OBLIGATIONS

3.1 The Brokerage's obligations to the Landlord are limited to:

(a) exercising reasonable care and skill in the provision of services agreed to in Section 4;

(b) not negligently or knowingly providing false or misleading information;

(c) holding all monies received with respect to a transaction in trust in accordance with the provisions of the *Real Estate Act*; and

(d) complying with the provisions of the *Real Estate Act* and its regulations, and the rules and bylaws of the Real Estate Council of Alberta.

4. BROKERAGE'S SERVICES

4.1 The Brokerage will provide the Landlord with the following services:

(a) provision of standard forms necessary to complete an agreement to lease;

(b) presentation, in a timely manner, of all offers and counter-offers from and to the Tenant;

(c) conveying in a timely manner information between the Landlord and the Tenant;

(d) keeping the Landlord informed regarding the progress of the agreement.

4.2 The Brokerage, at its sole discretion, may provide the Landlord with the following information:

(a) real estate statistics and comparable property information;

(b) the names of real estate service providers, but the Brokerage will not recommend any particular service provider.

5. INFORMATION

5.1 The Landlord agrees that the Brokerage is authorized, at its discretion, to obtain information concerning the Premises from any person, corporation or government or municipal agency.

REALTOR®

This form was developed by the Alberta Real Estate Association (AREA) for the use of its members only. Reproduction in whole or in part is strictly prohibited without the prior written permission from AREA. Copyright #1194132 AREA 2022. Trademarks are owned or controlled by The Canadian Real Estate Association (CREA) and identify real estate professionals who are members of CREA (REALTOR®) and/or the quality of services they provide (MLS®).

MLS MULTIPLE LISTING SERVICE®

6. BROKERAGE'S FEE

6.1 The Landlord will pay the Brokerage _____ (the "Fee") plus GST if a legally enforceable agreement to lease is entered into between the Landlord and the Tenant within 90 days of the date of this Agreement and, subject to clause 6.3, whether or not the lease is signed.

6.2 The Landlord will pay the Fee upon the lease being signed or the Tenant being given possession of the Premises by the Landlord, whichever occurs first.

6.3 The Landlord will be relieved of any obligation to pay the Fee if the Tenant, without lawful justification, fails to sign the lease.

7. PAYMENT OF FEE

7.1 The Landlord authorizes the Brokerage to deduct the Fee owed to the Brokerage from the deposit, if any, held by the Brokerage, and agrees to pay any unpaid balance of the Fee to the Brokerage in accordance with clause 6.2.

8. SECURITY FOR THE BROKERAGE'S FEE

8.1 The Landlord now **encumbers** all of its interest in the Premises for the benefit of the Brokerage to secure payment of all money which may be owed by the Landlord to the Brokerage under this Agreement. The parties agree that the Brokerage is entitled to encumber the Premises in accordance with the *Land Titles Act* (Alberta). The Landlord now authorizes the Brokerage to file and maintain a **caveat** to give notice of this encumbrance.

8.2 If the Brokerage successfully enforces any of its rights or remedies under this section, the Landlord will pay reasonable lawyer and client legal fees and costs incurred by the Brokerage.

9. USE AND DISTRIBUTION OF INFORMATION

9.1 The Landlord authorizes the Brokerage and the Board to retain for appraisal and statistical purposes information the Landlord provided about the Premises.

10. TERMINATION OF THIS AGREEMENT

10.1 This Agreement may be terminated by the Landlord or the Brokerage, but without prejudice to the acquired rights of either.

11. APPLICABLE LAW

11.1 This Agreement will be governed by the laws of the Province of Alberta and the parties submit to the exclusive jurisdiction of the Courts in the Province of Alberta regarding any disputes that may arise out of this Agreement.

12. ADDITIONAL TERMS

12.1 No amendment to the terms of this Agreement shall be effective unless it is in writing and signed by the Landlord and the Brokerage.

12.2 If there is conflict or discrepancy between any provision added to this Agreement and any provision in the standard pre-set portion hereof, the added provision shall supersede the standard pre-set provision to the extent of such conflict or discrepancy.

12.3 This Agreement shall constitute the entire agreement between the Landlord and the Brokerage and there are no representations, warranties, collateral agreements or conditions that affect this Agreement other than as expressed herein.

13. LANDLORD ACKNOWLEDGMENT

13.1 The Landlord acknowledges that:

(a) the provision of services to the Landlord and the payment of the Fee to the Brokerage do not create an agency relationship between the Landlord and the Brokerage;

(b) the Landlord has been given the opportunity to request further information and independent advice concerning this Agreement and customer status and the Brokerage's representation relationship with the Tenant; and

(c) this Agreement accurately sets out the terms agreed to by the Landlord and the Brokerage.

In witness thereof the parties have signed this Agreement as of _____. m. on _____, 20_____.

Signature of Landlord	Signature of Witness
Print Name of Landlord	Print Name of Witness
Signature of Landlord	Signature of Witness
Print Name of Landlord	Print Name of Witness
Signature of Brokerage Representative	Print Name of Brokerage Representative

REALTOR®

This form was developed by the Alberta Real Estate Association (AREA) for the use of its members only. Reproduction in whole or in part is strictly prohibited without the prior written permission from AREA. Copyright #1194132 AREA 2022.Trademarks are owned or controlled by The Canadian Real Estate Association (CREA) and identify real estate professionals who are members of CREA (REALTOR®) and/or the quality of services they provide (MLS®).

MLS MULTIPLE LISTING SERVICE®